

HOUSE No. 1693**The Commonwealth of Massachusetts**

PRESENTED BY:

Brandy Fluker-Reid

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to remove collateral consequences and protect the presumption of innocence.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Brandy Fluker-Reid</i>	<i>12th Suffolk</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/6/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/6/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>2/6/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>2/6/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>2/6/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/6/2025</i>
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>2/19/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/5/2025</i>
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>3/6/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>3/18/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>3/24/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/8/2025</i>
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>5/12/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>5/12/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>5/12/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>5/12/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>6/3/2025</i>

<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>6/20/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>9/3/2025</i>
<i>Andres X. Vargas</i>	<i>3rd Essex</i>	<i>9/3/2025</i>
<i>Rita A. Mendes</i>	<i>11th Plymouth</i>	<i>9/9/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>9/22/2025</i>
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>9/22/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>10/15/2025</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>10/17/2025</i>

HOUSE No. 1693

By Representative Fluker-Reid of Boston, a petition (accompanied by bill, House, No. 1693) of Brandy Fluker-Reid and others for legislation to remove collateral consequences and protect the presumption of innocence. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1493 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to remove collateral consequences and protect the presumption of innocence.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 172(a)(3) of chapter 6, as appearing in the 2022 Official Edition, is
2 hereby amended by striking the number “10” in the second sentence in subsection (i) and
3 inserting in place thereof, the following number:- 7.

4 SECTION 2. Section 172(a)(3) of chapter 6, as appearing in the 2022 Official Edition, is
5 hereby amended by striking the number “5” in subsection (ii) and inserting in place thereof, the
6 following number:- 3.

7 SECTION 3. Section 100A of chapter 276, as appearing in the 2022 Official Edition, is
8 hereby amended by inserting after the second sentence the following sentence:- “The

commissioner shall also comply with the request for sealing without imposing a waiting period for any offense that did not result in a conviction or “guilty file” disposition.

SECTION 4. Section 100B of chapter 276, as appearing in the 2022 Official Edition, is hereby amended after the last sentence in the first paragraph, the following two paragraphs:-

The words "delinquent" and "delinquency" as used in this section shall include and pertain to any juvenile offense, including where the juvenile is charged as or adjudicated a youthful offender, as long as the juvenile offense was not transferred from the juvenile court or a juvenile session to another court, or not filed in superior court.

Notwithstanding the above provisions, the clerk and the commissioner shall seal all records related to any offense immediately if the offense did not result in an adjudication, absent an objection from the juvenile upon final disposition of the offense, including completion of any period of court-ordered supervision or other court ordered conditions related to the offense. The juvenile shall not be required to file a petition or other request to seal the offense or offenses. A juvenile who objected to sealing of an offense or who otherwise has an unsealed offense that did not result in an adjudication shall be permitted to request sealing of the same offense at a later time, and the commissioner shall seal any such eligible offense upon request.

SECTION 5. Section 100C of chapter 276, as appearing in the 2022 Official Edition, is hereby amended by striking the first and second paragraph and inserting in place thereof the following paragraphs:-

(a) Whenever a criminal court offense does not result in a conviction, the clerk and the commissioner shall seal all records related to the offense immediately absent an objection from the defendant upon final disposition of the offense, including completion of any period of court-

ordered supervision or other court ordered conditions for the offense. The individual shall not be required to file a petition or other request to seal the charge or charges. A person who objects to sealing or who otherwise has an unsealed offense that did not result in a conviction shall be permitted to request sealing of the same offense at a later time, and the commissioner shall seal any such eligible offense upon request. Nothing in this section shall prohibit the commissioner from sealing any eligible offense pursuant to section 100A of this chapter.

(b) For the purposes of this section, a conviction is defined only as a finding of guilt, and does not include a continuance without a finding.

SECTION 6. Section 172 of chapter 6, as appearing in the 2022 Official Edition, is hereby amended by adding after subsection (o), the following new subsection :- (p) When the department provides any requestor with criminal offender record information about any pending charge or any offense that did not result in a criminal conviction, the department shall provide a written statement to the requestor that “A presumption of innocence applies to an individual with an offense that did not result in a conviction or is still pending,”

SECTION 7. Section 100Q of chapter 276, as appearing in the 2022 Official Edition, is hereby amended by inserting after the first sentence the following two sentences:-

The clerk’s office of any division of the trial court, the commissioner of probation, or any other criminal justice agency, upon request of a person whose offense or offenses are sealed, or the person’s legal representative, shall provide access to the sealed records to the individual or the individual’s legal representative without said person or legal representative obtaining a court order to unseal the record or taking other action. Immediately prior to sealing or expungement,

- 52 the clerk's office of any division of the trial court or the commissioner of probation shall provide
- 53 a certified copy of the criminal offender record information to the individual for personal use.